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§ 3102(2), (3); see *supra*, at 34–35. “Public lands” are therefore most but not quite all lands (and again, waters and interests) that the Federal Government owns.

Finally, to recap. As explained in *Sturgeon I*, “Section 103(c) draws a distinction between ‘public’ and ‘non-public’ lands within the boundaries of conservation system units in Alaska.” 577 U.S., at 440. Section 103(c)’s first sentence makes clear that only public lands (again, defined as most federally owned lands, waters, and associated interests) would be considered part of a system unit (again, just meaning a national park, preserve, or similar area). By contrast, state, Native, or private lands would not be understood as part of such a unit, even though they in fact fall within its geographic boundaries. Section 103(c)’s second sentence then expressly exempts all those non-public lands (the inholdings) from certain regulations—though exactly which ones, as will soon become clear, is a matter of dispute. And last, Section 103(c)’s third sentence enables the Secretary to buy any inholdings. If he does, the lands (because now public) become part of the park, and may be administered in the usual way—*e.g.*, without the provision’s regulatory exemption.

C

We can now return to John Sturgeon, on his way to a hunting ground alternatively dubbed “Moose Meadows” or “Sturgeon Fork.” As recounted above, Sturgeon used to travel by hovercraft up a stretch of the Nation River that lies within the boundaries of the Yukon-Charley Preserve. See *supra*, at 32. Until one day, three park rangers approached Sturgeon while he was repairing his steering cable and told him he was violating a Park Service rule. According to the specified regulation, “[t]he operation or use of hovercraft is prohibited” on navigable (and some other) waters “located within [a park’s] boundaries,” without any “regard to . . . ownership.” 36 CFR §§ 2.17(e), 1.2(a)(3); see *supra*, at 32. That regulation, issued under the Secretary’s Organic Act authority, applies on its face to parks across the country.

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See *supra*, at 38 (describing Organic Act). And Sturgeon did not doubt that the Nation River is a navigable water. But Sturgeon protested that in Alaska (even though nowhere else) the rule could not be enforced on a waterway—like, he said, the Nation River—that is not owned by the Federal Government. And when his objection got nowhere with the rangers (or with the Secretary, to whom he later petitioned), Sturgeon stopped using his hovercraft—but also brought this lawsuit, based on ANILCA’s Section 103(c).

In *Sturgeon I*, we rejected one ground for dismissing Sturgeon’s case, but remanded for consideration of two further questions. The District Court and Court of Appeals for the Ninth Circuit had held that even assuming the Nation River is non-public land, the Park Service could enforce its hovercraft ban there. See 2013 WL 5888230 (Oct. 30, 2013); 768 F. 3d 1066 (2014). Those two courts interpreted Section 103(c) to limit only the Service’s authority to impose Alaska-specific regulations on such lands—not its authority to apply nationwide regulations like the hovercraft rule. But we viewed that construction as “implausible.” 577 U. S., at 440. ANILCA, we reasoned, “repeatedly recognizes that Alaska is different.” *Id.*, at 438; see *id.*, at 440 (The Act “reflect[s] the simple truth that Alaska is often the exception, not the rule”). Yet the lower courts’ reading would “prevent the Park Service from recognizing Alaska’s unique conditions”—thus producing a “topsy-turvy” result. *Ibid.* Still, we thought two hurdles remained before Sturgeon could take his hovercraft out of storage. We asked the Court of Appeals to decide whether the Nation River “qualifies as ‘public land’ for purposes of ANILCA,” thus indisputably subjecting it to the Service’s regulatory authority. *Id.*, at 441. And if the answer was “no,” we asked the Ninth Circuit to address whether the Service, on some different theory from the one just dispatched, could still “regulate Sturgeon’s activities on the Nation River.” *Ibid.*

The Ninth Circuit never got past the first question because it concluded that the Nation River is “public land[.]” See

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872 F. 3d 927, 936 (2017). The court explained that it was bound by three circuit decisions construing that term, when used in ANILCA’s provisions about subsistence fishing, as including all navigable waters. *Id.*, at 933–934. Accordingly, the court again rejected Sturgeon’s challenge. *Id.*, at 936.

And we again granted certiorari. 585 U. S. 1002 (2018).

II

We first address whether, as the Ninth Circuit found, the Nation River is “public land” under ANILCA. As defined, once again, that term means (almost all) “lands, waters, and interests therein” the “title to which is in the United States.” 16 U. S. C. § 3102(1)–(3). If the Nation River comes within that definition, even Sturgeon agrees that the Park Service may enforce its hovercraft rule in the stretch traversing the Yukon-Charley. That is because the Organic Act authorizes the Park Service to regulate boating and similar activities in parks and other system units—and under ANILCA’s Section 103(c) those units include all “public land” within their boundaries. 54 U. S. C. § 100751(a)–(b); 16 U. S. C. § 3103(c); see *supra*, at 38–40.

But the United States does not have “title” (as the just-quoted definition demands) to the Nation River in the ordinary sense. As the Park Service acknowledges, running waters cannot be owned—whether by a government or by a private party. See *FPC v. Niagara Mohawk Power Corp.*, 347 U. S. 239, 247, n. 10 (1954); Brief for Respondents 33. In contrast, the lands beneath those waters—typically called submerged lands—can be owned, and the water regulated on that basis. But that does not help the Park Service because, as noted earlier, the Submerged Lands Act gives each State “title to and ownership of the lands beneath [its] navigable waters.” 43 U. S. C. § 1311; see *supra*, at 34–35. That means Alaska, not the United States, has title to the lands beneath the Nation River.

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So the Park Service argues instead that the United States has “title” to an “interest” in the Nation River, under what is called the reserved-water-rights doctrine. See Brief for Respondents 32–37. The canonical statement of that doctrine goes as follows: “[W]hen the Federal Government withdraws its land from the public domain and reserves it for a federal purpose, the Government, by implication, reserves appurtenant water then unappropriated to the extent needed to accomplish the purpose of the reservation.” *Cappaert v. United States*, 426 U.S. 128, 138 (1976). For example, this Court decided that in reserving land for an Indian tribe, the Government impliedly reserved sufficient water from a nearby river to enable the tribe to farm the area. See *Winters v. United States*, 207 U.S. 564, 576 (1908). And similarly, we held that in creating a national monument to preserve a species of fish inhabiting an underground pool, the United States acquired an enforceable interest in preventing others from depleting the pool below the level needed for the fish to survive. See *Cappaert*, 426 U.S., at 147. According to the Park Service, the United States has an analogous interest in the Nation River and other navigable waters in Alaska’s national parks. “Because th[e] purposes [of those parks] require that the waters within [them] be safeguarded against depletion and diversion,” the Service contends, “Congress’s reservations of park lands also reserved interests in appurtenant navigable waters.” Brief for Respondents 35.

That argument first raises the question whether it is even possible to hold “title,” as ANILCA uses the term, to reserved water rights. 16 U.S.C. § 3102(2). Those rights, as all parties agree, are “usufructuary” in nature, meaning that they are rights for the Government to use—whether by withdrawing or maintaining—certain waters it does not own. See *Niagara Mohawk Power Corp.*, 347 U.S., at 246; Brief for Petitioner 36; Brief for Respondents 36. The Park Service has found a couple of old cases suggesting that a person can hold “title” to such usufructuary interests. See *ibid.*;

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Crum v. Mt. Shasta Power Corp., 220 Cal. 295, 307, 30 P. 2d 30, 36 (1934); *Radcliff's Ex'rs v. Mayor of Brooklyn*, 4 N. Y. 195, 196 (1850). But the more common understanding, recently noted in another ANILCA case, is that “reserved water rights are not the type of property interests to which title can be held”; rather, “the term ‘title’ applies” to “fee ownership of property” and (sometimes) to “possessory interests” in property like those granted by a lease. See *Totemoff v. State*, 905 P. 2d 954, 965 (Alaska 1995) (collecting cases); Brief for State of Idaho et al. as *Amici Curiae* 21–22 (same). And we see no evidence that the Congress enacting ANILCA meant to use the term in any less customary and more capacious sense.

But even assuming so, the Nation River itself would not thereby become “public land” in the way the Park Service argues. Under ANILCA’s definition, the “public land” at issue would consist only of the Federal Government’s specific “interest” in the river—that is, its reserved water right. § 3102(1), (3). And that reserved right, by its nature, is limited. It does not give the Government plenary authority over the waterway to which it attaches. Rather, the interest merely enables the Government to take or maintain the specific “amount of water”—and “no more”—required to “fulfill the purpose of [its land] reservation.” *Cappaert*, 426 U. S., at 141. So, for example, in the cases described above, the Government could control only the volume of water necessary for the tribe to farm or the fish to survive. See *Winters*, 207 U. S., at 576–577; *Cappaert*, 426 U. S., at 141. And likewise here, the Government could protect “only th[e] amount of water” in the Nation River needed to “accomplish the purpose of the [Yukon-Charley’s] reservation.” *Id.*, at 138, 141.

And whatever that volume, the Government’s (purported) reserved right could not justify applying the hovercraft rule on the Nation River. That right, to use the Park Service’s own phrase, would support a regulation preventing the

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“depletion or diversion” of waters in the river (up to the amount required to achieve the Yukon-Charley’s purposes). Brief for Respondents 34–35. But the hovercraft rule does nothing of that kind. A hovercraft moves above the water, on a thin cushion of air produced by downward-directed fans; it does not “deplet[e]” or “diver[t]” any water. Nor has the Park Service explained the hovercraft rule as an effort to protect the Nation River from pollution or other similar harm. To the contrary, that rule is directed against the “sight or sound” of “motorized equipment” in remote locations—concerns not related to safeguarding the water. 48 Fed. Reg. 30258 (1983). So the Park Service’s “public lands” argument runs aground: Even if the United States holds title to a reserved water right in the Nation River, that right (as opposed to title in the river itself) cannot prevent Sturgeon from wafting along the river’s surface toward his preferred hunting ground.²

III

We thus move on to the second question we posed in *Sturgeon I*, concerning the Park Service’s power to regulate even non-public lands and waters within Alaska’s system units (or, in our unofficial terminology, national parks). The Service principally relies on that sort of ownership-indifferent authority in defending its decision to expel Sturgeon’s hovercraft from the Nation River. See Brief for Respondents 16–

²As noted earlier, the Ninth Circuit has held in three cases—the so-called *Katie John* trilogy—that the term “public lands,” when used in ANILCA’s subsistence-fishing provisions, encompasses navigable waters like the Nation River. See *Alaska v. Babbitt*, 72 F. 3d 698 (1995); *John v. United States*, 247 F. 3d 1032 (2001) (en banc); *John v. United States*, 720 F. 3d 1214 (2013); *supra*, at 42. Those provisions are not at issue in this case, and we therefore do not disturb the Ninth Circuit’s holdings that the Park Service may regulate subsistence fishing on navigable waters. See generally Brief for State of Alaska as *Amicus Curiae* 29–35 (arguing that this case does not implicate those decisions); Brief for Ahtna, Inc., as *Amicus Curiae* 30–36 (same).

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18, 25–32. And we can see why. If Sturgeon lived in any other State, his suit would not have a prayer of success. As noted earlier, the Park Service has used its Organic Act authority to ban hovercrafts on navigable waters “located within [a national park’s] boundaries” without any “regard to . . . ownership.” 36 CFR §§ 2.17(e), 1.2(a)(3); see *supra*, at 40. And no one disputes that Sturgeon was driving his hovercraft on a stretch of the Nation River (a navigable water) inside the borders of the Yukon-Charley (a national park). So case closed. Except that Sturgeon lives in Alaska. And as we have said before, “Alaska is often the exception, not the rule.” *Sturgeon I*, 577 U.S., at 440. Here, Section 103(c) of ANILCA makes it so. As explained below, that section provides that even when non-public lands—again, including waters—are geographically within a national park’s boundaries, they may not be regulated as part of the park. And that means the Park Service’s hovercraft regulation cannot apply there.³

To understand why, first recall how Section 103(c) grew out of ANILCA’s unusual method for drawing park boundaries. See *supra*, at 37–38. Those lines followed the area’s “natural features,” rather than (as customary) the Federal Government’s property holdings. 16 U.S.C. § 3103(b). The borders thus took in immense tracts owned by the State, Native Corporations, and private individuals. And as you might imagine, none of those parties was eager to have its lands newly regulated as national parks. To the contrary, all of them wanted to preserve the regulatory status quo—to prevent ANILCA’s maps from subjecting their properties to the Park Service’s rules. Hence arose Section 103(c). Cf. Tr. of Oral Arg. 51–52 (Solicitor General acknowledging

³ Because we see, for the reasons given below, no ambiguity as to Section 103(c)’s meaning, we cannot give deference to the Park Service’s contrary construction. See *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837, 842 (1984) (“If the intent of Congress is clear, that is the end of the matter”).

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that Section 103(c) responds to the State’s and Native Corporations’ “concern[s]” about the effects of “includ[ing their lands] within the outer boundaries” of the new parks). Now might be a good time to review that provision, block quoted above. See *supra*, at 39. In broad brush strokes, *Sturgeon I* described it as follows: “Section 103(c) draws a distinction between ‘public’ and ‘non-public’ lands,” including waters, “within the boundaries of [Alaska’s] conservation system units.” 577 U. S., at 440.

Section 103(c)’s first sentence sets out the essential distinction, relating to what qualifies as parkland. It provides, once again, that “[o]nly” the “public lands” (essentially, the federally owned lands) within any system unit’s boundaries would be “deemed” a part of that unit. §3103(c). The non-public lands (everything else) were, by negative implication, “deemed” not a part of the unit—even though within the unit’s geographic boundaries. The key word here is “deemed.” That term is used in legal materials “[t]o treat (something) as if . . . it were really something else.” Black’s Law Dictionary 504 (10th ed. 2014). Legislators (and other drafters) find the word “useful” when “it is necessary to establish a legal fiction,” either by “‘deeming’ something to be what it is not” or by “‘deeming’ something not to be what it is.” *Ibid.* (quoting G. C. Thornton, *Legislative Drafting* 99 (4th ed. 1996)). The fiction in Section 103(c) involves considering certain lands actually within the new national parks as instead without them. As a matter of geography, both public and non-public lands fall inside those parks’ boundaries. But as a matter of law, only public lands would be viewed as doing so. All non-public lands (again, including waters) would be “deemed,” abracadabra-style, outside Alaska’s system units.⁴

⁴ Consistent with that approach, Congress left out non-public lands in calculating the acreage of every new or expanded system unit. Sections 201 and 202 of ANILCA, in describing those units, state the acreage of only their public lands. See, *e. g.*, §410hh(1) (providing that Aniakchak

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The effect of that exclusion, as Section 103(c)'s second sentence affirms, is to exempt non-public lands, including waters, from the Park Service's ordinary regulatory authority. Recall that the Organic Act pegs that authority to system units. See *supra*, at 38. The Service may issue rules thought "necessary or proper" for "System units." 54 U.S.C. § 100751(a). And more pertinently here, the Service may prescribe rules about activities on "water located within System units." § 100751(b). Absent Section 103(c), those grants of power enable the Service to administer even non-federally owned waters or lands inside national parks. See *supra*, at 38. But add Section 103(c), and the equation changes. Now, according to that section's first sentence, non-federally owned waters and lands inside system units (on a map) are declared outside them (for the law). So those areas are no longer subject to the Service's power over "System units" and the "water located within" them. § 100751(a), (b). Instead, only the federal property in system units is subject to the Service's authority.⁵ And that is

National Preserve would "contain[] approximately [367,000] acres of public lands"); § 410hh-1(3) (providing that Denali National Park would grow "by the addition of an area containing approximately [2,426,000] acres of public land").

⁵ At times, the Park Service has argued here that the Organic Act gives it authority to regulate waters outside system units, so long as doing so protects waters or lands inside them. See Brief for Respondents 28–32. If so, the argument goes, that authority would similarly permit the Service to regulate the non-federally owned waters that Section 103(c) has deemed outside Alaskan system units, if and when needed to conserve those units' federal waters or lands. But at other points in this litigation, the Service has all but disclaimed such out-of-the-park regulatory authority. See No. 14–1209, Tr. of Oral Arg. 58 (Jan. 20, 2016) ("The Park Service [has] consistently understood its authority to be regulating [within] the park's boundaries. It's never sought to enact a regulation outside of the park's boundaries"). We take no position on the question because it has no bearing on the hovercraft rule at issue here. That rule, by its express terms, applies only inside system units. See *supra*, at 40. It therefore does not raise any question relating to the existence or scope of the Service's authority over water outside system units.

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just what Section 103(c)'s second sentence pronounces, for waters and lands alike. Again, that sentence says that no state, Native, or private lands "shall be subject to the regulations applicable solely to public lands within [system] units." 16 U.S.C. § 3103(c). The sentence thus expressly states the consequence of the statute's prior "deeming." The Service's rules will apply exclusively to public lands (meaning federally owned lands and waters) within system units. The rules cannot apply to any non-federal properties, even if a map would show they are within such a unit's boundaries. Geographic inholdings thus become regulatory outholdings, impervious to the Service's ordinary authority.⁶

And for that reason, Section 103(c)'s third sentence provides a kind of escape hatch—for times when the Park Service believes regulation of the inholdings is needed. In that event, "the Secretary may acquire such lands" from "the State, a Native Corporation, or other owner." § 3103(c). (As noted earlier, facilitating those acquisitions was one reason Congress put non-federal lands inside park boundaries in the first instance. See *supra*, at 37–38.) When the Secretary makes such a purchase, the newly federal land "become[s] part of the [system] unit." § 3101(c). And the Park Service may then "administer[]" the land just as it does (in the second sentence's phrase) the other "public lands within such units." *Ibid.* In thus providing a way out of the Section's first two sentences, the third underlines what they are doing: insulating the state, Native, or private lands that ANILCA enclosed in national parks from new and unexpected regulation. In sum, those lands may be regulated only as they could have been before ANILCA's

⁶ Another provision of ANILCA reflects that result. Right after Sections 201 and 202 describe each new or expanded system unit by reference to how many acres of public land it contains, see n. 4, *supra*, Section 203 authorizes the Park Service to administer, under the Organic Act, the areas listed in "the foregoing sections." § 410hh-2. In other words, Section 203 of ANILCA ties the Service's regulatory authority to the statute's immediately preceding statements of *public-land* acreage.

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enactment, unless and until bought by the Federal Government.

The Park Service interprets Section 103(c) differently, relying wholly on its second sentence and mostly on the single word “solely” there. True enough, the Service acknowledges, that anxiety about how it would regulate inholdings was “really what drove [Section] 103(c).” Tr. of Oral Arg. 48; see *supra*, at 39, 46. But still, the Service argues, the Section’s second sentence exempts those non-public lands from only “one particular class of Park Service regulations”—to wit, rules “‘applicable *solely* to public lands.’” Brief for Respondents 30 (quoting and adding emphasis to §3103(c)). In other words, if a Park Service regulation on its face applies only (“solely”) to public lands, then the regulation shall not apply to a park’s non-public lands. But if instead the regulation covers public and non-public lands alike, then the second sentence has nothing to say: The regulation can indeed cover both. See *ibid.* The Park Service labels that sentence a “tailored limitation” on its authority over inholdings. *Ibid.* And it concludes that the sentence has no bearing on the hovercraft rule, which expressly applies “without regard to . . . ownership.” 36 CFR §1.2(a)(3).

But on the Park Service’s view, Section 103(c)’s second sentence is a mere truism, not any kind of limitation (however “tailored”). Once again: It tells Alaskans, so the Park Service says, that rules applying only to public lands . . . will apply only to public lands. And that rules applying to both public and non-public lands . . . will apply to both. (Or, to say the same thing, but with approximate statutory definitions plugged in: It tells Alaskans that rules applying only to the Federal Government’s lands . . . will apply only to the Federal Government’s lands. And that rules applying to federal, state, Native, and private lands alike . . . will apply to them all.) In short, under the Park Service’s reading, Section 103(c)’s second sentence does nothing but state the obvious. Its supposed exemption does not in fact ex-

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empt anyone from anything to which they would otherwise be subject. Remove the sentence from ANILCA and everything would be precisely the same. For it curtails none of the Service's ordinary regulatory authority over inholdings.⁷

And more: The Park Service's reading of Section 103(c)'s second sentence also strips the first and third sentences of their core functions. Under the Service's approach, the first sentence's "deeming" has no point. There is no reason to pretend that inholdings are not part of a park if they can still be regulated as parklands. Nor is there a need to create a special legal fiction if the end result is to treat Alaskan inholdings no differently from those in the rest of the country. And similarly, the third sentence's acquisition option has far less utility if the Service has its full regulatory authority over lands the Federal Government does not own. Why cough up money to "administer[]" property as "part of the [system] unit" unless doing so makes a real difference, by removing a regulatory exemption otherwise in effect? The Service's reading effectively turns the whole of Section 103(c) into an inkblot.

And still more (if implicit in all the above): That construction would undermine ANILCA's grand bargain. Recall that ANILCA announced its Janus-faced nature in its state-

⁷ And just to pile on: Even taken as a truism, the Park Service's view of the second sentence misfires, because of the technical difference between "public lands" and federally owned lands in ANILCA. Recall that "public lands" is defined in the statute to mean most but not all federally owned lands: The term excludes those federal lands selected for future transfer to the State or Native Corporations. See §3102(3); *supra*, at 39–40. (That is why when we reframed the Park Service's argument just above, we noted that we were using "approximate" statutory definitions.) But the Park Service's existing regulations apply, at a minimum, to *all* federally owned lands within a park's borders. See 36 CFR §1.2(a). That means there are no regulations "applicable solely to public lands" as defined in ANILCA. §3103(c). So when the Park Service argues that the second sentence exempts non-public lands from that single "class of [its] regulations," Brief for Respondents 18, 30, it is not even exempting those lands from obviously inapplicable regulations (as we assume in the text); instead, it is exempting them from a null set of rules.

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ment of purpose, reflecting the century-long struggle over federal regulation of Alaska's resources. See *supra*, at 33–36. In that opening section, ANILCA spoke about safeguarding “natural, scenic, historic[,] recreational, and wild-life values.” 16 U. S. C. § 3101(a). Yet it insisted as well on “provid[ing] for” Alaska's (and its citizens') “economic and social needs.” § 3101(d). In keeping with the statute's conservation goal, Congress reserved huge tracts of land for national parks. But to protect Alaskans' economic well-being, it mitigated the consequences to non-federal owners whose land wound up in those new system units. See *supra*, at 46–50. Once again, even the Park Service acknowledges that Section 103(c) was supposed to provide an “assurance” that those owners would not be subject to all the regulatory constraints placed on neighboring federal properties. See Tr. of Oral Arg. 52; see *id.*, at 48; *supra*, at 39, 46, 49. But then the Service (head-spinningly) posits that it need only draft its regulations to cover both federal and non-federal lands in order to apply those rules to ANILCA's inholdings. On that view, limitations on the Service's authority are purely a matter of administrative grace, dependent on how narrowly (or broadly) the Service chooses to write its regulations. And ANILCA's carefully drawn balance is thrown off-kilter, as Alaskan, Native, and private inholdings are exposed to the full extent of the Service's regulatory authority.

The word “solely” in Section 103(c)'s second sentence does not support that kind of statute-gutting. We do not gainsay that the Park Service has identified a grammatically possible way of viewing that word's function: as pinpointing a narrow class of the Service's regulations (those “solely applicable to public lands”).⁸ But that reading, for all the reasons just stated, is “ultimately inconsistent” with the “text and context of the statute.” *Sturgeon I*, 577 U. S., at 438. And a

⁸ It is unfortunate for the Park Service's argument that the narrow class of regulations thus identified does not in fact exist. See n. 7, *supra*. But we put that point aside for the remainder of this paragraph.

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different understanding of “solely” instead aligns with that text and context. That word encapsulates Congress’s view that the Park Service’s regulations should apply “solely” to public lands (and not to state, Native, or private ones). See *supra*, at 48–49, and n. 5. And the word serves to distinguish between the Park Service’s rules and other regulations, both federal and state. Consider if Congress had exempted non-public lands in a system unit from regulations “applicable to public lands” there (without the “solely”). That language would apparently exempt those lands not just from park regulations but from a raft of others—*e. g.*, pollution regulations of the Environmental Protection Agency, water safety regulations of the Coast Guard, even employment regulations of Alaska itself. For those rules, too, apply to public lands inside national parks. By adding “solely,” Congress made clear that the exemption granted was not from such generally applicable regulations. Instead, it was from rules applying only in national parks—*i. e.*, the newly looming Park Service rules. Congress thus ensured that inholdings would emerge from ANILCA not worse off—but also not better off—than before.⁹

⁹The Park Service points to one provision of ANILCA that (it says) contemplates application of its rules to inholdings; but as suggested in the text that provision really envisions other agencies’ regulations. Section 1301(b)(7) requires the Service to create for each system unit a land management plan that includes (among other things) a description of “privately owned areas” within the unit, the activities carried out there, and the “methods (such as cooperative agreements and issuance or enforcement of regulations)” for limiting those activities if appropriate. 16 U. S. C. § 3191(b)(7). Nothing in that section “directs the Park Service” itself to issue or enforce regulations, as the Service now argues. See Brief for Respondents 30–31. Instead, the Service satisfies all its obligations under the provision by reporting on the panoply of federal and state statutes and regulations that apply to any non-public land (whether or not in a park). And indeed, the Service’s management plans have taken exactly that form. See, *e. g.*, Dept. of Interior, Nat. Park Serv., Kobuk Valley National Park: Land Protection Plan 123–124 (1986) (noting that “[w]hile [Park Service] regulations do not generally apply to private lands

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The legislative history (for those who consider it) confirms, with unusual clarity, all we have said so far. The Senate Report notes that state, Native, and private lands in the new Alaskan parks would be subject to “[f]ederal laws and regulations of general applicability,” such as “the Clean Air Act, the Water Pollution Control Act, [and] U. S. Army Corps of Engineers wetlands regulations.” S. Rep. No. 96–413, p. 303 (1980). But that would not be so of regulations applying only to parks. The Senate Report states:

“Those private lands, and those public lands owned by the State of Alaska or a subordinate political entity, are not to be construed as subject to the management regulations which may be adopted to manage and administer any national conservation system unit which is adjacent to, or surrounds, the private or non-Federal public lands.” *Ibid.*

The sponsor of Section 103(c) in the House of Representatives described that provision’s effect in similar terms. The section was designed, he observed, to ensure that ANILCA’s new boundary lines would “not in any way change the status” of the state, Native, and private lands placed within them. 125 Cong. Rec. 11158 (1979) (statement of Rep. Seiberling). Those lands, he continued, “are not parts of th[e] system] unit and are not subject to regulations which are applied” by virtue of being “part of the unit.” *Ibid.* In short, whatever the new map might suggest, they are not subject to regulation as parkland.

We thus arrive again at the conclusion that the Park Service may not prevent John Sturgeon from driving his hovercraft on the Nation River. We held in an earlier part of this

in the park (Section 103, ANILCA),” the regulations “that do apply” include those issued under “the Alaska Anadromous Fish Act, the Endangered Species Act, the Clean Water and Clean Air acts, and the Protection of Wetlands, to name a few”); Dept. of Interior, Nat. Park Serv., Noatak National Preserve: Land Protection Plan 138–139, 142 (1986) (similar).

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opinion that the Nation is not public land. See *supra*, at 42–45. And here we hold that it cannot be regulated as if it were. Park Service regulations—like the hovercraft rule—do not apply to non-public lands in Alaska even when those lands lie within national parks. Section 103(c) “deem[s]” those lands outside the parks and in so doing deprives the Service of regulatory authority.

IV

Yet the Park Service makes one last plea—for some kind of special rule relating to Alaskan navigable waters. Even suppose, the argument runs, that those waters do not count as “public lands.” And even assume that Section 103(c) strips the Service of power to regulate *most* non-public lands. Still, the Service avers—invoking “the overall statutory scheme”—that ANILCA must at least allow it to regulate navigable waters. Brief for Respondents 40; see *id.*, at 40–45; Tr. of Oral Arg. 43 (ANILCA’s regulatory restrictions were “not about navigable waters”); *id.*, at 65–66 (similar). Here, the Service points to ANILCA’s general statement of purpose, which lists (among many other things) the “protect[ion] and preserv[ation]” of “rivers.” 16 U.S.C. §3101(b). Similarly, the Service notes that the statements of purpose associated with particular system units refer to “protect[ing]” named rivers there. *E.g.*, §410hh–1(1). And the Service highlights several statutory sections that in some way speak to its ability to regulate motorboating and fishing within the new units. See §§3121, 3170, 3201, 3203(b), 3204.¹⁰ According to the Service, all of those provisions

¹⁰The Park Service also points to a separate title of ANILCA, which raises issues outside the scope of this case. Title VI designates 26 named rivers in Alaska as “wild and scenic rivers,” to be “administered by the Secretary” under the (nationwide) Wild and Scenic Rivers Act, 94 Stat. 2412–2413. According to the Service, those special designations (and associated management instructions) enable it to “administer the [specified] rivers pursuant to its general statutory authorities”—notwithstanding anything in Section 103(c). Brief for Respondents 42–43. But the Na-

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show that “ANILCA preserves [its] authority to regulate conduct on navigable waters” in national parks. Brief for Respondents 42.

But ANILCA does not readily allow the decoupling of navigable waters from other non-federally owned areas in Alaskan national parks for regulatory (or, indeed, any other) purposes. Section 103(c), as we have described, speaks of “lands (as such term is defined in th[e] Act).” 16 U. S. C. § 3103(c); see *supra*, at 39. The Act, in turn, defines “land” to mean “lands, waters, and interests therein.” § 3102(1)–(3); see *supra*, at 39. So according to an express definition, when ANILCA refers to “lands,” it means waters (including navigable waters) as well. And that kind of definition is “virtually conclusive.” A. Scalia & B. Garner, *Reading Law: The Interpretation of Legal Texts* 228 (2012); see *ibid.* (“It is very rare that a defined meaning can be replaced” or altered). Save for some exceptional reason, we must read ANILCA as treating identically solid ground and flowing water. So if the Park Service were right that it could regulate the Nation River under its ordinary authorities, then it also could regulate the private fields and farms in the surrounding park. And more to the point, once Section 103(c) is understood to preclude the regulation of those landed properties, then the same result follows—“virtually conclusive[ly]”—for the river.

And nothing in the few aquatic provisions to which the Park Service points can flip that strong presumption, for none conflicts with reading Section 103(c)’s regulatory exemption to cover non-federal waters. The most substantive of those provisions, as just noted, contemplate some role for the Service in regulating motorboating and fishing. But contra the Park Service, those sections have effect under our interpretation because both activities can occur on federally owned (and thus fully regulable) non-navigable waters. The

tion River, all agree, is not a “wild and scenic river.” We may therefore leave for another day the interplay between Section 103(c) and Title VI.

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other provisions the Service emphasizes are statements of purpose, which by their nature “cannot override [a statute’s] operative language.” *Id.*, at 220. And anyway, our construction leaves the Park Service with multiple tools to “protect” rivers in Alaskan national parks, as those statements anticipate. § 3101(b); § 410hh–1(1). The Park Service may at a minimum regulate the public lands flanking rivers. It may, additionally, enter into “cooperative agreements” with the State (which holds the rivers’ submerged lands) to preserve the rivers themselves. § 3181(j). It may similarly propose that state or other federal agencies with appropriate jurisdiction undertake needed regulatory action on those rivers. See § 3191(b)(7); see also Kobuk Valley: Land Protection Plan, at 118, 121 (recommending that the Alaska Department of Natural Resources classify navigable parts of the Kobuk River for preservation efforts). And if all else fails, the Park Service may invoke Section 103(c)’s third sentence to buy from Alaska the submerged lands of navigable waters—and then administer them as public lands. See §§ 3103(c), 3192; see also Kobuk Valley: Land Protection Plan, at 133 (proposing that if Alaska does not adequately protect the Kobuk River, the Park Service should “seek to acquire title to th[o]se state lands through exchange”).

Those authorities, though falling short of the Service’s usual power to administer navigable waters in system units, accord with ANILCA’s “repeated[] recogni[tion] that Alaska is different.” *Sturgeon I*, 577 U.S., at 438. ANILCA’s broadly drawn parks include stretches of some of the State’s most important rivers, such as the Yukon and Kuskokwim. See Brief for State of Alaska as *Amicus Curiae* 12. And rivers function as the roads of Alaska, to an extent unknown anyplace else in the country. Over three-quarters of Alaska’s 300 communities live in regions unconnected to the State’s road system. See *id.*, at 11. Residents of those areas include many of Alaska’s poorest citizens, who rely on rivers for access to necessities like food and fuel. See *id.*, at

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11–12. Who knows?—maybe John Sturgeon could have found a comparable hunting ground that did not involve traveling by hovercraft through a national park. But some Alaskans have no such options. The State’s extreme climate and rugged terrain make them dependent on rivers to reach a market, a hospital, or a home. So ANILCA recognized that when it came to navigable waters—just as to non-federal lands—in the new parks, Alaska should be “the exception, not the rule.” *Sturgeon I*, 577 U. S., at 440. Which is to say, exempt from the Park Service’s normal regulatory authority.

V

ANILCA, like much legislation, was a settlement. The statute set aside more than a hundred million acres of Alaska for conservation. In so doing, it enabled the Park Service to protect—if need be, through expansive regulation—“the national interest in the scenic, natural, cultural and environmental values on the public lands in Alaska.” 16 U. S. C. § 3101(d). But public lands (and waters) was where it drew the line—or, at any rate, the legal one. ANILCA changed nothing for all the state, Native, and private lands (and waters) swept within the new parks’ boundaries. Those lands, of course, remain subject to all the regulatory powers they were before, exercised by the EPA, Coast Guard, and the like. But they did not become subject to new regulation by the happenstance of ending up within a national park. In those areas, Section 103(c) makes clear, Park Service administration does not replace local control. For that reason, park rangers cannot enforce the Service’s hovercraft rule on the Nation River. And John Sturgeon can once again drive his hovercraft up that river to Moose Meadows.

We accordingly reverse the judgment below and remand the case for further proceedings consistent with this opinion.

It is so ordered.

SOTOMAYOR, J., concurring

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, concurring.

Professors have long asked law students to interpret a hypothetical ordinance that prohibits bringing “a vehicle into the park.”¹ The debate usually centers on what counts as a “vehicle.” Is a moped forbidden? How about a baby stroller? In this case, we can all agree that John Sturgeon’s hovercraft is a vehicle. But now we ask whether he has brought it “into the park”—and, if not, how a river’s designation as “outside the park” will affect future attempts to regulate there.

The Court decides that the Nation River is not parkland, and I join the Court’s opinion because it offers a cogent reading of § 103(c) of the Alaska National Interest Lands Conservation Act (ANILCA), 94 Stat. 2371, 16 U. S. C. § 3101 *et seq.* I write separately to emphasize the important regulatory pathways that the Court’s decision leaves open for future exploration.

The Court holds only that the National Park Service may not regulate the Nation River as if it were within Alaska’s federal park system, not that the Service lacks all authority over the Nation River. A reading of ANILCA § 103(c) that left the Service with no power whatsoever over navigable rivers in Alaska’s parks would be untenable in light of ANILCA’s other provisions, which state Congress’ intent that the Service protect those very same rivers. Congress would not have set out this aim and simultaneously deprived the Service of all means to carry out the task.

Properly interpreted, ANILCA § 103(c) cannot nullify Congress’ purposes in enacting ANILCA. Even though the Service may not apply its ordinary park rules to nonpublic

¹ See A. Scalia & B. Garner, *Reading Law: The Interpretation of Legal Texts* 36 (2012); Hart, *Positivism and the Separation of Law and Morals*, 71 Harv. L. Rev. 593, 607 (1958).